

23VECV05371 23VECV05371

County: los-angeles

Division: Civil Law and Motion

Department: B

Hearing date: 2026-07-30

Source URL: https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=NW%20%2CB%2C07%2F30%2F2026

Source SHA-256: 59e7f78eee879063452009c831bfcf541aafa46164c4e40b867b89c3c622f1b8

Case Number: 23VECV05371 Hearing Date: July 30, 2026 Dept: B

Tentative Ruling

Carlos v. Carter, Jr., Case no. 23VECV05371

Hearing date July 30, 2026

Defendant

Carter, Jr.'s Motion for Court to Enter Costs Against Plaintiff – UNOPPOSED

Plaintiff

security guard sues for assault, battery, and intentional infliction of emotional distress arising from an incident at defendant Carter's home. The court imposed terminating sanctions on plaintiff on 4/29/26. See 4/29/26 Min. Order. Defendant moves for costs of \$14,511. See 6/24/26 Memo. The motion is unopposed.

Per

the court's 6/10/26 judgment in defendant's favor: (1) judgment is entered in favor of defendant and against plaintiff; (2) plaintiff shall take nothing from defendant on plaintiff's claims; (3) defendant shall recover \$29,225 in sanctions against plaintiff and counsel of record, jointly and severally; and (4) defendant shall recover his costs from plaintiff "by noticed motion." See 6/10/26 Judgment.

Defendant

filed and served a memorandum of costs as required by California Rules of Court rule 3.1700(a)(1). Decl. Difuntorum, para. 3, exh. B. The costs sought were reasonably incurred throughout the course of this 2.5 year-old case, which saw

multiple discovery and sanctions motions. Id. The costs sought are unopposed. GRANTED. Defendant is awarded \$14,511 in costs.